

CHAPTER 13

LOCATING COMBINATION DESCRIPTIONS AND CONVEYANCES

13.1 INTRODUCTION

The authors do not know of any state that identifies for attorneys or surveyors how land descriptions should be written. Many of the suggestions are created in private writings. Essentially, there are few restrictions on who can prepare land and/or boundary descriptions to the point that a landowner may prepare his or her own descriptions. This fact has led to unnecessary litigation over the validity of land descriptions.

When creating boundaries, a scrivener should strive to use a consistent form of descriptions.

If there is any one profession that requires its practitioners to be well versed in many aspects and specifics or requirements, it is undoubtedly the surveying profession. Surveyors are not only asked to create boundaries and descriptions but are required then to survey and locate these boundaries on the ground at a later date and then found. This found evidence in all probability was created by some earlier persons.

In the everyday course of a retracement of boundaries of parcels of land, there is no one approach that can be explained. Because in most states it is legal for any person to prepare a deed, we find people of all social classes, educational backgrounds, and capabilities writing descriptions that may defy future retracement. We often find descriptions that go clockwise for one portion and then counterclockwise for the remaining portion. Or we may discover that a parcel is partially described by a metes or bounds

description or a metes *and* bounds description and also by reference to a plat, recorded or unrecorded. In a GLO state, we may find an aliquot description for a parcel only to be “more particularly described” by courses and monuments. In this chapter, we consider some of the problems created by the scrivener of a description who uses various and possibly confusing combinations of sequential and simultaneous descriptions.

The following principles are discussed in this chapter:

- PRINCIPLE 1. When an owner conveys a portion of a lot in a subdivision by an “of” description, the owner conveys that portion of the lot called for by measuring from the side line of the street. Vacations or openings of streets do not alter original lot lines.
- PRINCIPLE 2. When an owner conveys a portion of a metes and bounds survey by an “of” description, the owner conveys from the boundary line or causes the measurements to be made from the boundary line, even though the boundary line is in a street.
- PRINCIPLE 3. Words in a land boundary description should not be abbreviated. To do so may cause future problems for the retracing surveyor.
- PRINCIPLE 4. A scrivener of a land/boundary description should not change from one style to another but should use the same method throughout the entire description.
- Principle 5. When an owner conveys an “of” description by lineal measurements, the pre-sumption is that the measurement is at right angles to the boundary line from which the measurement is made, unless specified otherwise, as well as being a horizontal measurement.
- PRINCIPLE 6. When a fraction of the whole is conveyed, such as the west half, it is presumed that the conveyance is based on area measurement unless stated otherwise.
- PRINCIPLE 7. When the easterly and westerly lines of a lot are shown as parallel on the original map and in fact are nearly parallel, and the easterly half and westerly half are conveyed, the dividing line between the easterly and westerly halves is made on the mean bearing of the two lines.
- PRINCIPLE 8. When the easterly and westerly lines of a lot are not parallel or north and the lot is divided into east and west halves, the dividing line should be made to run north and south.
- PRINCIPLE 9. When a deed reads “east one-half of lot 1” and the second deed reads “lot 1, except the east one-half,” it is commonly assumed that the west line of the east one-half is parallel with the east line of the lot, provided that the east line of the lot is nearly in a cardinal direction.
- PRINCIPLE 10. In the absence of other qualifying terms, a given area of land on the side of a tract will include such quantity in the form of a parallelogram. If a given area of land is to be laid off on a given line, the shape is presumed to be a square. If a given area of land is

to be laid off in the corner of a given parcel of land, the shape is presumed to be as nearly a parallelogram with equal sides as the circumstance permits.

- PRINCIPLE 11. When writing a legal boundary description, avoid deed calls from two directions.
- PRINCIPLE 12. The scrivener should write each description as an individual creation, and each description should assume a continuity of words and definitions.
- PRINCIPLE 13. When a retracing boundary surveyor encounters a problem, he or she should try to give consideration to all elements of the description, but should be able to explain why specific elements were not adhered to.

“OF” DESCRIPTIONS

13.2 “OF,” “IN,” AND “AT” DESCRIPTIONS WITHIN SUBDIVISIONS AND ADJOINING STREETS

Land conveyed by an “of” description, such as the “easterly 50 feet of Lot 2,” as shown in Figure 13.1, presents an ambiguity. Ownership of a lot within a subdivision usually extends to the centerline of the street; hence, the easterly 50 feet of Lot 2 could be measured from the centerline of the street. But in the minds of the public, the side line of the street, not the centerline, is the limit of private ownership, thus causing the 50 feet to be measured from the side line. In keeping with the principle “Where two meanings can be construed from a written instrument, the meaning giving the greater advantage to the grantee is usually used,” and in keeping with the intent of the sale as understood by most people, the measurements are made from the side line of the lot in accordance with the following principle.

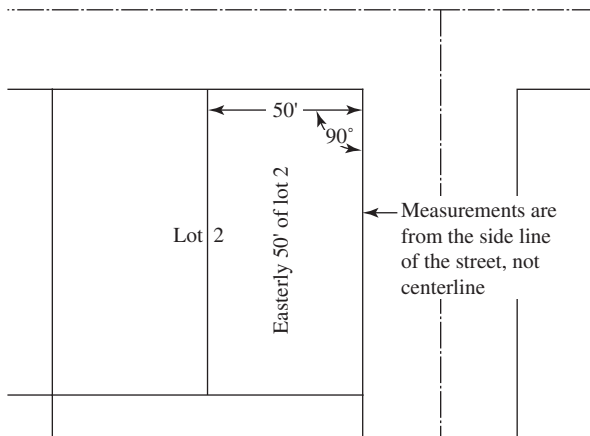


Figure 13.1 Ambiguous description.

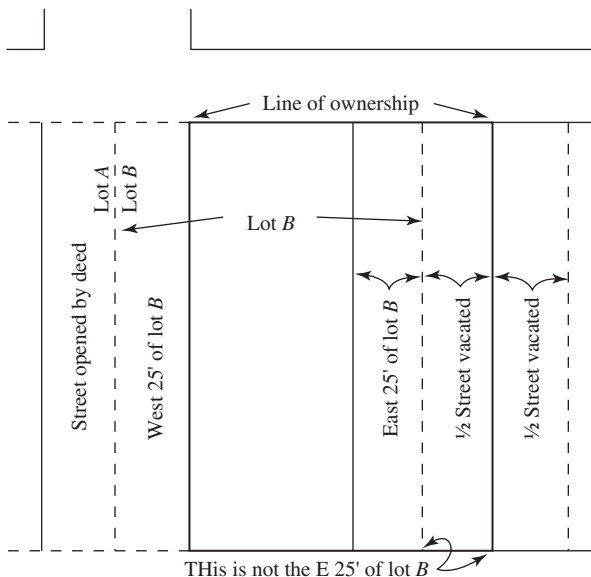


Figure 13.2 Lot lines never change because of a street opening or closing.

Principle 1. When an owner conveys a portion of a lot in a subdivision by an “of” description, the owner conveys that portion of the lot called for by measuring from the side line of the street. Vacations or openings of streets do not alter original lot lines.

This is explained in the following decision:

However clear it may appear that the owner of a lot holds title to the center of the adjoining street, subject to the public easement, and that the boundary of the lot is technically, therefore, the center of the street, in view of the fact that the owner of such lot or land has no right to the possession or occupancy of any portion of such street, the word “lot” as generally and customarily used does not include that portion of the street. In the absence of any circumstances indicating that a more unusual and technical meaning of the word “lot” was contemplated and intended by the grantor, it will be presumed that the grant of a fractional part or of a given number of feet of a certain lot or parcel of land conveys the given fractional part or number of feet of that portion of the lot or parcel of land which is set apart for private use and occupancy.¹

In Figure 13.2, a condition is shown where care must be used in conveying the east or west 25 feet of the ownership shown. Lot lines never change because of a street opening or closing. Because of the vacation of the street, the east 25 feet of the ownership is properly described as the westerly one-half of the street now vacated and not the easterly 25 feet of Lot B. The west 25 feet of Lot B describes a portion of a street opened, whereas the east 25 feet of the west 50 feet properly describes the 25 feet immediately adjoining the west side of the ownership. The surveyor must be extremely careful if a subdivision has been repeated.

13.3 “OF” DESCRIPTIONS WITHIN METES AND BOUNDS DESCRIPTIONS AND ADJOINING STREETS

Principle 2. *When an owner conveys a portion of a metes and bounds survey by an “of” description, the owner conveys from the boundary line or causes the measurements to be made from the boundary line, even though the boundary line is in a street. This is identified in*

In metes and bounds descriptions, the reverse principle to that given for subdivisions usually is implied. When the “easterly 50 feet of the following described property” is conveyed, as in Figure 13.3, the property conveyed is the easterly 50 feet of that part described, even though part of the land described may lie within a public street.

When writing “of,” “in,” and “at” descriptions, the original creator should extend the writings beyond the specific word. This can be included in the habendum clause of the description.

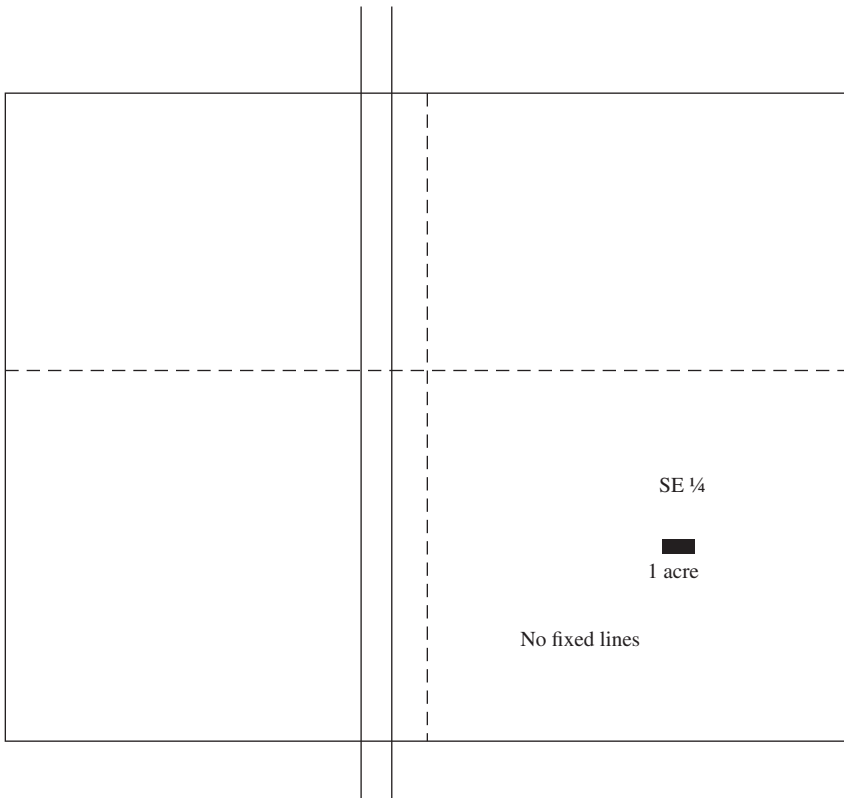


Figure 13.3A “In” the SE 1/4.

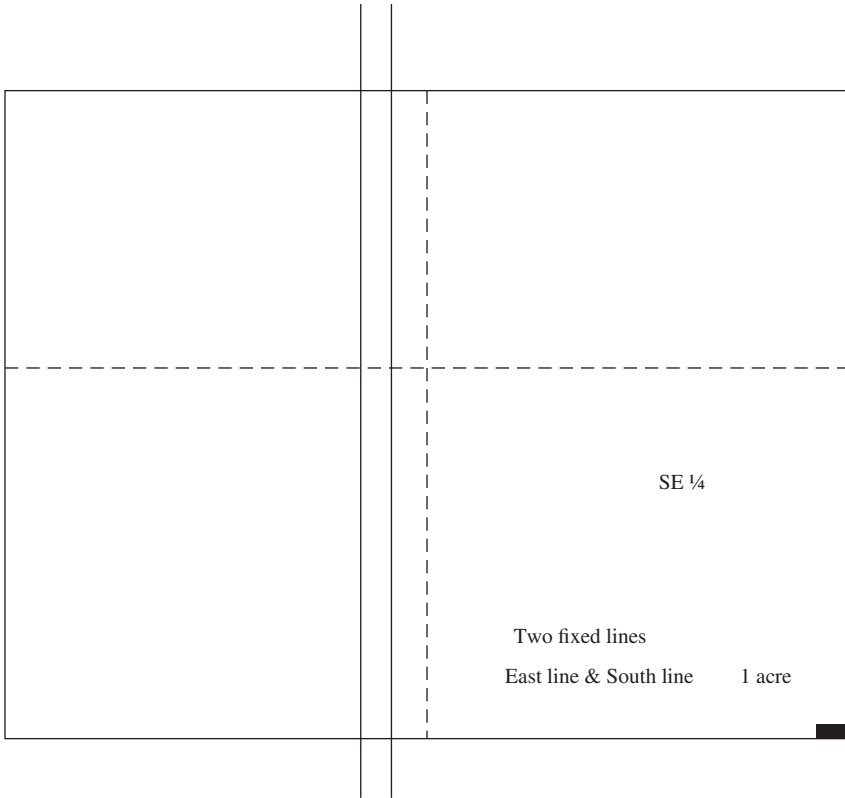


Figure 13.3B At the SE $\frac{1}{4}$.

In Figure 13.3, the problem is that of the “in” description. A parcel of 1 acre is identified as “1 acre in the SE $\frac{1}{4}$.” The courts have held that the boundaries are indefinite and ambiguous.

Principle 3. *Words in a land boundary description should not be abbreviated. To do so may cause future problems for the retracing surveyor.*

When writing boundary descriptions, some individuals resort to abbreviating some words, thinking this action will save paper and time. Any person who writes boundary descriptions should make it a practice to write all words fully without resorting to abbreviations. Scriveners believe that having a legend explaining what the abbreviations mean will suffice; this is not true.

Several years ago, a plaintiff brought an action in Memphis when his retracing surveyor encountered the abbreviation “CM” on a plat. In doing his fieldwork, he uncovered a concrete monument in the general locality and used that as a control point to which the landowner constructed a large movie theater complex. Several

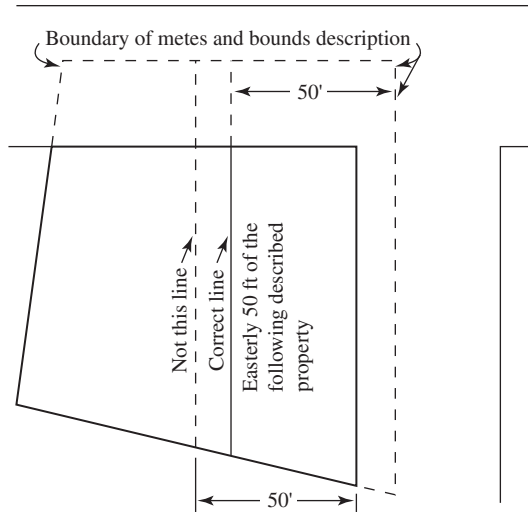


Figure 13.4 Illustration of Principle 2.

months later, a survey of the contiguous lot indicated a possible overlap of the adjacent lot of some 25 feet. When the surveyor who conducted the original survey was contacted, he informed the landowner that “CM” indicated a “chisel mark” and not a concrete monument on the curb line, which was found. Many surveyors use the abbreviation “IP” randomly to indicate iron pin or iron pipe without making the distinction. In conducting research, surveyors will find that title professionals are prone to take a well-written description and reduce it to abbreviations.

Principle 4. *A scrivener of a land/boundary description should not change from one style to another but should use the same method throughout the entire description.*

There are several accepted methods for describing land parcels and boundaries. Each is suitable with particular original evidence. One of the earliest forms is a description consisting of calls for adjoining parcels. This is probably one of the oldest forms in use today. This method of describing a parcel by referring to the contiguous parcels that concerned the parcel being described is probably a result of the early method of transferring land by “*livery of seisen*”: When the scrivener starts using one form, he or she should not adopt a second or third form in that same description.

The scrivener will find this form of description is one of the easiest to create.

For example, a description may be partially written as follows:

Bounded on the North by Issac Smith, and on the East by the road to Queensbury, then one line North 28° West, a distance of 124.23 feet to Corner 4, thence . . .”

This form of description should be discouraged.

13.4 DIRECTION OF MEASUREMENT

When writing or retracing “of” descriptions, the retracing creating surveyor should make a detailed research of the exact boundaries from which the description should be written and then ultimately retraced. Possession lines and boundary lines for measurements may not be the same.

Principle 5. *When an owner conveys an “of” description by lineal measurements, the presumption is that the measurement is at right angles to the boundary line from which the measurement is made, unless specified otherwise, as well as being a horizontal measurement.*

Figure 13.5a shows a typical case where the “northerly 50 feet” of a lot and the “southerly 50 feet as measured along the easterly and westerly lines” of a lot give different areas. As in all measurements of this type, where alternate meanings can be interpreted, the greatest advantage is given to the buyer. However, where the method of measurement is specified as in the “southerly 50 feet” of Figure 13.5a, the method as specified should be used since alternate meanings do not exist. In Figure 13.5b are shown the correct property lines for curves and angle points in lines where lineal measurement “of” descriptions are used. It is interesting to note that where an angle

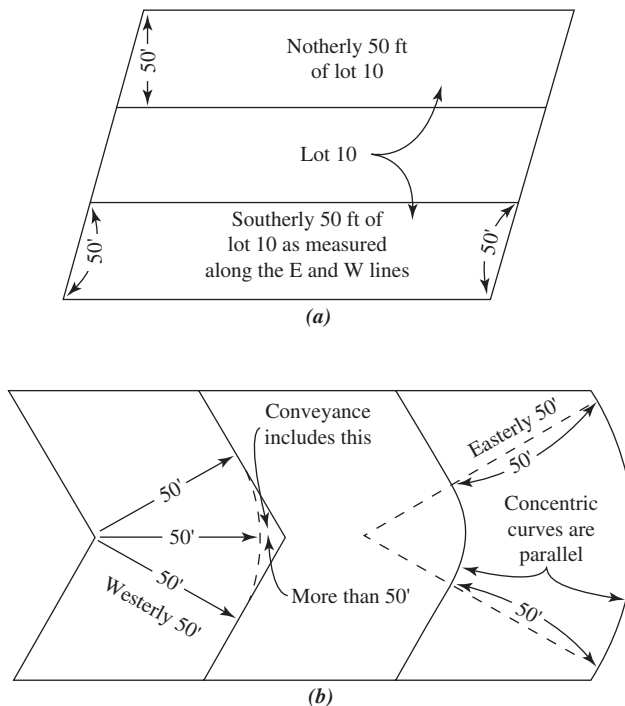


Figure 13.5 Illustration of Principle 5.

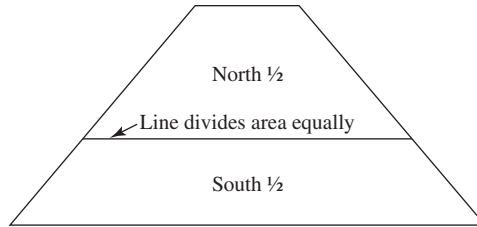


Figure 13.6 Presumption that conveyance is based on area measurement.

point exists as shown in Figure 13.5*b* more is conveyed at the angle point than the distance called for.

13.5 PROPORTIONAL “OF” CONVEYANCE

Principle 6. *When a fraction of the whole is conveyed, such as the west half, it is presumed that the conveyance is based on area measurement unless stated otherwise. (See Figure 13.6.)*

This principle is not in harmony with the federal statutes that specify the method to be used for sectionalized land. Thus, the north one-half of the northwest one-quarter of Section 6 might be considerably less in area (especially in a closing section on a correction line) than the south one-half of the northwest one-quarter. In general, proportionate conveyances under state laws are based on acreage; under federal laws for sectionalized land, acreage is not considered; distance is the criterion.

If the scrivener insists on using this form of description, his or her method of proportioning should be identified in the *habendum clause* of the description.

Occasionally, in sectionalized land where there is an odd-shaped lot bordering on a lake or land grant line and the land is divided *after it has passed under state jurisdiction*, a question arises as to the intent of the sale where half is sold. The south one-half of Lot 4, as shown in Figure 13.7, would be divided, according to state laws, into two parts of equal area. But by the federal principle, the south half would be determined by a line extending west from the midpoint of the easterly line of Lot 4. Any reference such as “according to federal government survey methods” implies that the lot would be divided by linear measurements. A few states have adopted statute laws similar to federal laws, and thus it becomes mandatory that the federal rules be applied. Where division by acreage is intended, it is advisable to state “one-half the acreage of Lot 4.”

“A deed calling for the north one half of a lot facing the Au Gress River and not indicating a division line, is to be divided so as to make the parcels equal in area; a division such as to give each one half of the river front, is erroneous.”² Strictly speaking, any line can divide a lot into two halves, especially where the deeds state the northerly one-half and the southerly one-half. In a written description of a proportional or fractional conveyance, the direction of the dividing line should always be given.

Proportional conveyances, where the method of locating the dividing line is specified as “the south one-half as measured along the easterly line,” are divided in

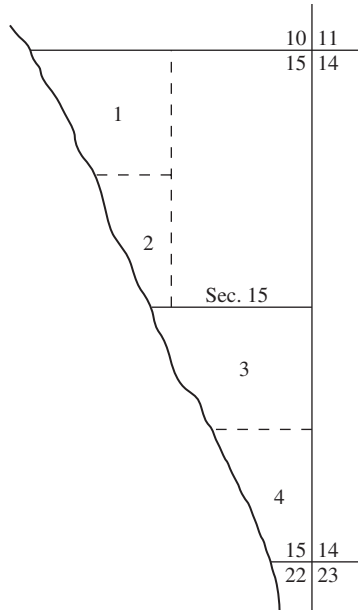


Figure 13.7 Odd-shaped lot.

accordance with the method specified. “Along a line” cannot be an area measurement nor does it imply equal areas; the line would be divided in half and the distance principle applied.

13.6 EXCEPTION BY ONE-HALF BY AREA

In New York, where the terms *east-half* and *west-half* imply equal area division, the rule may lose its effect when it appears that at the time the deed was formed some fixed boundary (such as a fence) divided the property somewhere near the center, so the words referred more properly to one of such parts than to a mathematical division, which had never been made.³

13.7 INDETERMINATE PROPORTIONAL CONVEYANCES

Indeterminate proportional conveyances are those in which the direction of the dividing line is not given or implied. Any area may be divided in half by a multitude of lines, and when the direction of the dividing line is not given, the conveyance may be indeterminate, as shown in Figure 13.8. A scrivener who fails to define the direction of the dividing line when writing a proportional conveyance is dedicating to the future a headache for the parties on either side of the dividing line and an unsolvable problem to surveyors. Such descriptions should and could be avoided by a few carefully inserted words in a document so that a clear and concise intent is conveyed rather than a dual meaning left to the fighting instincts of future owners.

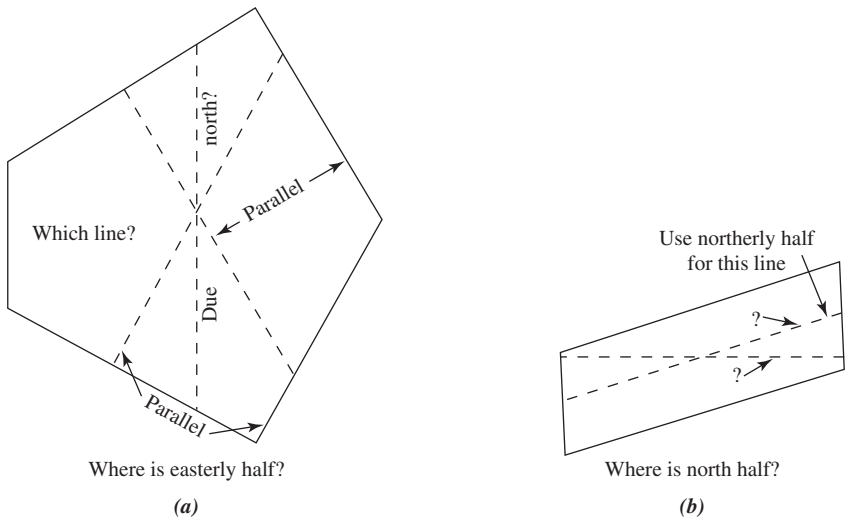


Figure 13.8 Indeterminate proportional conveyances.

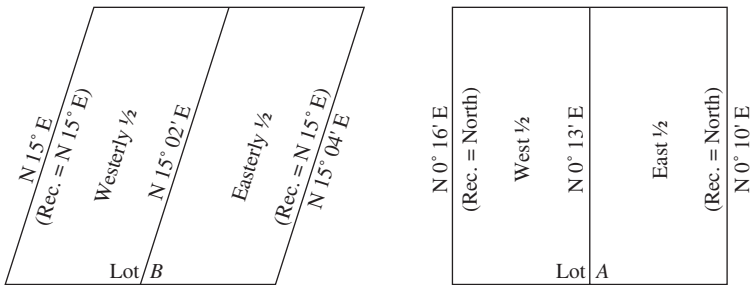


Figure 13.9 Illustration of Principle 7.

Under certain conditions, the direction of the dividing line is revealed by the geometric shape of the entire parcel or by the wording of the deed.

13.8 ANGULAR DIRECTION OF THE DIVIDING LINE IN “OF” DESCRIPTIONS

Principle 7. When the easterly and westerly lines of a lot are shown as parallel on the original map and in fact are nearly parallel, and the easterly half and westerly half are conveyed, the dividing line between the easterly and westerly halves is made on the mean bearing of the two lines.

Figure 13.9 illustrates this principle as applied to two conditions. Lot A was originally shown as having due north lot lines that proved to be north 0°10'00" east and north 0°16'00" east when actually surveyed. Because two parcels were sold, the east

one-half and the west one-half, the problem of the surveyor is to divide the area into two equal areas and use a line equitable to both parties. Because the original lot lines were shown as parallel, the dividing line should be as nearly parallel with the sides of the lot as possible or, in other words, on the average bearing of the two sides. This principle can be overcome by other factors more clearly showing the intent, such as stakes set at the time of the division and being parallel with either the west or the east line. This principle cannot be applied where the deeds read "the east one-half" and "all except the east one-half" since it is then inferred that the east one-half is intended to be a parallelogram and the west one-half is what is left. Use of the terms "east one-half," "west one-half," "north one-half," and "south one-half" should be avoided unless the original lot lines were due east, west, north, or south. Easterly, westerly, and so on, are the proper terms, which do not imply that the dividing line must be astronomic north or west. In the case of lot B in Figure 13.9, where the original lot lines were shown as parallel and where the easterly and westerly halves were conveyed, there is the implication that the dividing line should be as nearly parallel with the easterly and westerly lines as possible or on the average bearing of the lines.

This principle is of little value when the supposedly parallel lines are in fact considerably out of parallelism. In one such case, the court ruled that after the grantor had sold the easterly half, he could sell only his remainder. The easterly half was laid off by parallel lines, and the westerly half received the remainder.

Nonparallel Lines

Principle 8. *When the easterly and westerly lines of a lot are not parallel or north and the lot is divided into east and west halves, the dividing line should be made to run north and south.*

A deed reading "the east one-half" of the land shown in Figure 13.10 would be staked by turning 75° from the northerly property line at a point that will divide the lot into two equal areas. The record map bearing, S $75^\circ 00' 00''$ E, determines the

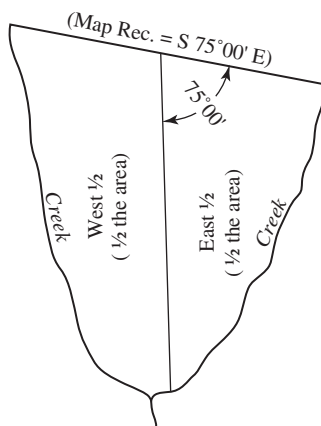


Figure 13.10 Dividing line based on bearings.

basis of bearings (where a deed calls for a map, the data shown on the map become a portion of the written description), and since the line is to be north, the angle of 75° properly defines north according to the map referred to. Where no record bearing exists on the map called for, as in Figure 13.11, only an astronomical observation can properly divide the lot into the east one-half and west one-half. In neither figure is there an implication that the dividing line is to be parallel to a particular line.

East Half of Lot and the Lot Except the East Half

Principle 9. When a deed reads “east one-half of lot 1” and the second deed reads “lot 1, except the east one-half,” it is commonly assumed that the west line of the east one-half is parallel with the east line of the lot, provided that the east line of the lot is nearly in a cardinal direction.

Figure 13.12 shows the application of this rule and also a case where it does not apply. In Figure 13.12*b*, if the deeds were written “the easterly one-half and all except the easterly one-half,” the common practice would be to make the dividing line parallel with the easterly line. As shown in Figure 13.13, the southeast one-half was ruled to be delineated by a line parallel to the $N 63^\circ E$ line, not by the diagonal line.⁴

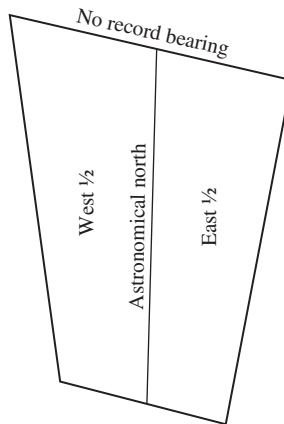


Figure 13.11 Dividing line based on astronomical observation.

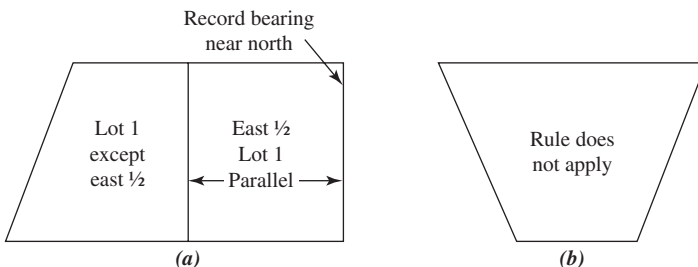


Figure 13.12 Principle 7 applies when lines are parallel.

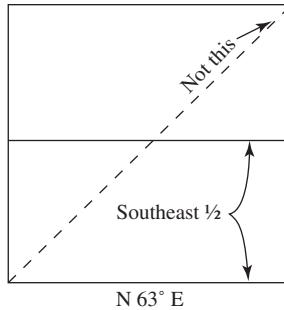


Figure 13.13 Application of parallel lines.

13.9 ACREAGE “OF” DESCRIPTIONS

The same general rules of Section 13.5 that apply to proportional descriptions (the north one-half of lot 1, etc.) apply to acreage conveyances. The direction of the dividing line, as in proportional descriptions, should always be stated when a new deed is written.

A description reading “the north 10 acres” of the land shown in Figure 13.8a allows two interpretations, each equally valid. Similarly, the “easterly 10 acres” of the land shown in Figure 13.8a is an indeterminate area. But there are certain general principles for acreage descriptions that can be stated.

Principle 10. *In the absence of other qualifying terms, a given area of land on the side of a tract will include such quantity in the form of a parallelogram. If a given area of land is to be laid off on a given line, the shape is presumed to be a square. If a given area of land is to be laid off in the corner of a given parcel of land, the shape is presumed to be as nearly a parallelogram with equal sides as the circumstance permits.*

In a Texas case, Chief Justice McClendon stated:

Where land is described generally by acreage out of the corner or off a side of a larger tract, the courts will construct a survey of the designated acreage, by lines drawn parallel with the designated line or lines of the larger tract; not, however, because the parties have so stated in their writings, but because the writing is silent on the subject, and the presumption that they so intended is deduced from what men ordinarily do under like circumstances.⁵

The conditions were shown in Figure 13.14. The south 75 acres and the north 80 acres of a 155-acre parcel were leased within two days of each other. Area A, containing an oil well, was claimed by the lessee of the 75-acre parcel on the grounds that the lessor stated that his intentions were to lease the north 80 acres and then lease the remainder. But the court ruled that the south 75 acres must be laid between parallel lines; hence, the lessee of the south 75 acres had no interest in Area A.

A description of “nine acres in the southwest corner of the SE $\frac{1}{4}$ of the SW $\frac{1}{4}$ of Section 1, T8N, R4W” was construed in accordance with the following: “A conveyance of a definite quantity of land in or off of a specified corner of a designated tract is, under a well-settled rule of construction, the grant of a corner quadrangle, of equal sides, extending to the corner.”⁶

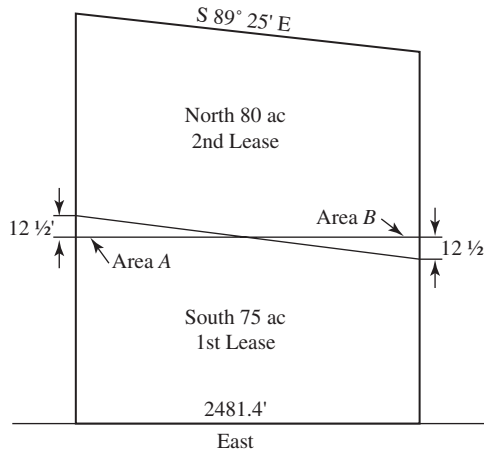


Figure 13.14 *Woods v. Selby Oil & Gas Co.*, 2 S.W.2d 89s, 12 S.W.2d 994 (1929).

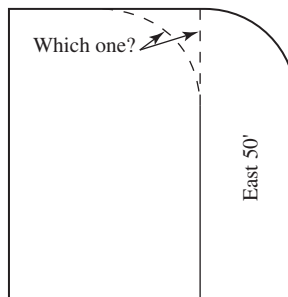


Figure 13.15 Avoid “east 50 feet” where there is a corner cut off by radius return.

Under the rule that where a deed describes a tract of land as so many acres in a certain corner of a specified section, it will be taken to embrace the given number of acres in the form of a square in the corner of the section designated.⁷

Also, a description reading “15 acres more or less off the southwest corner of the NE ¼” was construed to mean “exactly 15 acres to be taken in a square body located in the southwest corner of the land.”⁸ The same principle was applied in a New York case.⁹

13.10 AMBIGUITY

All too often, ambiguous statements or phrases in deeds are difficult to interpret and require field information. In Figure 13.15, the “east 50 feet” is indeterminate where a curve return cuts off the corner. Better practice is to write the “east 50 feet as determined by a line parallel with the most easterly line of the lot and its northerly extension.” “Beginning at a point 50 feet from the most northerly corner of Lot

B,” as shown in Figure 13.16, indicates two possible points. In Figure 13.17, the southwest one-quarter can be interpreted in two ways. The rear 15 feet and the west 50 feet in Figures 13.18 and 13.19 can be solved only by physical evidence on the ground or parol evidence of witnesses. Figure 13.20, the case of the double exception, can and should be avoided by the deed author, who should never use double exceptions without checking for dual meanings. “Lot B, except the north 50 feet, except the west 75 feet,” is clear until the second exception is made. What does the “except the west 75 feet” refer to, the north 50 feet or lot B? Deeds being interpreted

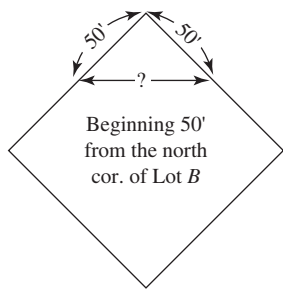


Figure 13.16 “50 feet from north corner” may mean two possible points.

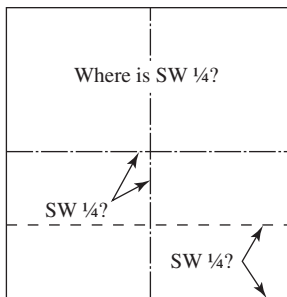


Figure 13.17 Where is the SW one-quarter?

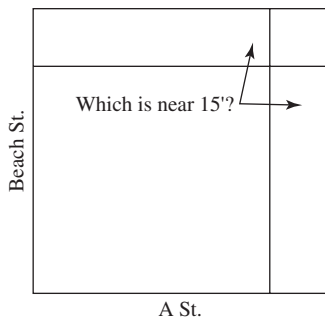


Figure 13.18 Ambiguity of “near.”

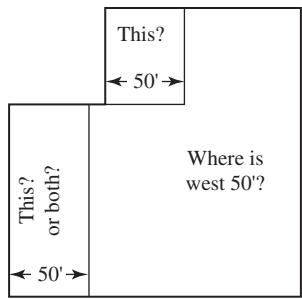


Figure 13.19 Ambiguity of “west 50 feet.”

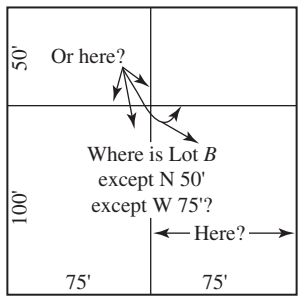


Figure 13.20 The double exception.

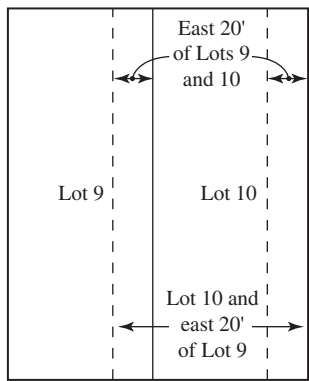


Figure 13.21 State the whole lot first.

most strongly against the grantor set up a condition in which a double exception may cause the grantor to part with more land than was intended.

In Figure 13.21, ambiguity results where a deed reads the “east 20 feet of lots 9 and 10,” owing to the dual meaning of (1) “lot 10 and the east 20 feet of lot 9,” or (2) the “east 20 feet of lot 9 and the east 20 feet of lot 10.” It is better to state the whole lot or lots first, and then follow with the part lots. In Figure 13.20, the sale would be construed most strongly against the grantor unless the contrary could be proved.

The land conveyed to a person and the land described to a person can be entirely different points, as shown in Figure 13.22. Where land abuts a road in a subdivision, by presumption, title to the road vests in the owner of the abutting land. The land described in this instance would be Lot 27 excluding the road, whereas the land conveyed would include Lot 27 and the road up to the centerline.

“Thence along the west line of lot D to the mean high-tide line; thence 150 feet along the mean high tide line; thence . . .” is ambiguous, as shown in Figure 13.23, because the mean high-tide line changes with erosion of the shoreline. The point of beginning of the next course could change with every storm.

Interpretation of intent is difficult in deeds containing double calls of the form “thence N 10° E a distance of 200 feet to a point in the north line of lot 13, said point being 120 feet westerly from the northeasterly corner of said lot and also being 110 feet easterly from the northwesterly corner of said lot.” If there is surplus or deficiency, both “being” clauses cannot be right. If the “N 10° E, 200 feet” is in agreement with one of the two distances, it would be controlling. But if the “N 10° E,

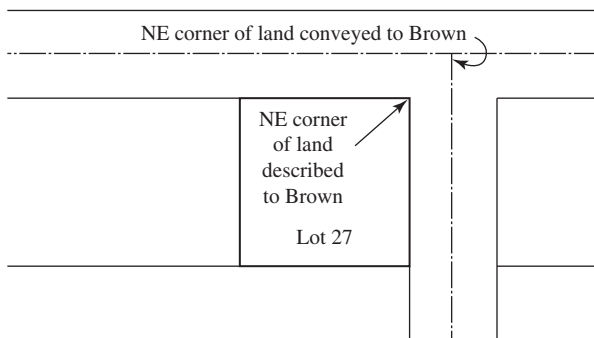


Figure 13.22 Land described versus land conveyed.

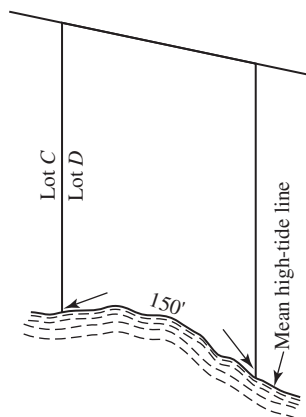


Figure 13.23 Distances along a body of water may change with erosion.

200 feet” is not in agreement with either tie to the lot corners, a prorate is indicated, provided that no senior right is interfered with.

Deeds of the form “thence N 10° E a distance of 200 feet to a point in the northerly line of lot 13, said point being S 89° W, 120 feet from the northeasterly corner of said lot; thence N 89° E, 120 feet to the northeasterly corner of said lot; thence, etc.,” would be construed by the tie distance. The N 10° E, 200 feet becomes more or less in character because of the extra emphasis placed on the N 89° E, 120 feet.

OVERLAPS AND GAPS

13.11 CALLS FROM TWO DIRECTIONS

Principle 11. *When writing a legal boundary description, avoid deed calls from two directions.*

This condition arises where portions of lots are sold from two directions, as the east 50 feet and the west 50 feet of a 100-foot lot, without calls for adjoiners. Often, a surplus or deficiency exists within a lot, and where the foregoing form is used, there is usually an overlap or gap. The proper way to describe the parcels is “the easterly 50 feet of lot 1” and “lot 1 except the easterly 50 feet.”

When an overlap exists between two parcels, the senior or first owner receives what is coming to him or her and the junior owner has the remainder. Where there is a gap and the two parcels do not meet, neither has title to the surplus, because the original grantor did not sell it. Thus, suppose that an owner sold the west 12 acres and the east 8 acres of a parcel reported to be 20 acres by original government measure. An accurate survey revealed that instead of there being 20 acres as supposed, the said 20 acres was found to be 22¼ acres, owing to surplus in the section. Because the original owner had not sold the surplus 2½ acres, title was vested in him.

ESTABLISHMENT OF PROPERTY DESCRIBED BY BOTH METES AND BOUNDS AND SUBDIVISION DESCRIPTIONS

13.12 DOUBLE DESCRIPTIONS

Ambiguity resulting from double descriptions of the same parcel of land can and should be avoided by deed authors. “Lot 4, block 2, according to map 1240 being also the following described land; beginning at the southeast corner of block 2; thence west 150 feet to the true point of beginning; thence, north 100 feet; thence west 150 feet to the true point of beginning; thence, north 100 feet; thence west 50 feet; thence, south 100 feet; thence, east 50 feet to the true point of beginning” is a description that invites trouble. The block shown in Figure 13.24, being long in all directions, causes the two parcels described to be in different locations. If the seller

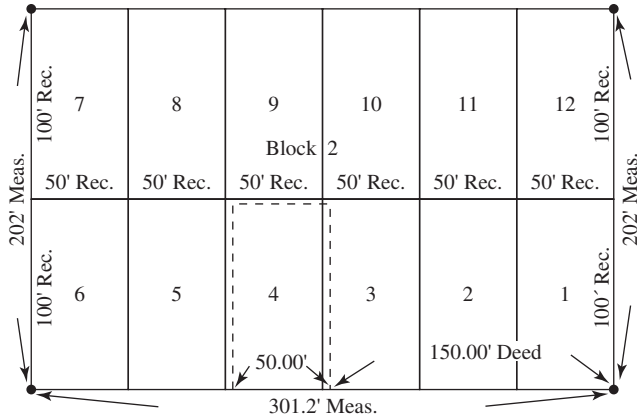


Figure 13.24 Ambiguity from double description.

owned all of Block 2 at the time of the sale, certainty of location would be impossible (see Section 13.13).

In Louisiana, a square described as No. 2670 on a map and also described as bounded by Paris Avenue, Hamburg, Manuel, and Fowy Streets was controlled by the monuments called for and the possession of the owner rather than the erroneous square number.¹⁰

In some areas of the United States, particularly older regions, double descriptions are more prevalent. Occasionally, three or four rewrites of the same land create numerous ambiguities. If it can be shown that the new description was intended by the scrivener to be the same as the old description, the new description should be interpreted in that light. If this cannot be shown, the grantor then remains as the owner of any unconveyed land. But the grantor cannot convey that which he or she does not own; hence, any land included that did not belong to the grantor is not conveyed.

13.13 NEW YORK DOUBLE DESCRIPTIONS

In New York, where there is excess or deficiency in a subdivided block, and the land is described by *both* lot and block, and by a metes and bounds description using the same dimensions shown on the plat, the deed is interpreted by the metes and bounds description; that is, any surplus or deficiency is not prorated. The senior deed gets exactly what is coming to it by its metes and bounds description, and the junior deed is plus or minus in character.

13.14 NATURAL PHENOMENA AND BOUNDARIES

On more and more occasions, surveyors are being asked to solve boundary issues and problems for which there is little or no case law, guidelines or statutes. This

area of boundary changes caused by natural forces is a fruitful area for surveyors. The following discussions are just an introduction to a very complex area of practice.

Most persons consider land as fixed in place, when in fact, land is in perpetual movement. A variety of natural phenomena affect the locations of boundaries and land titles.

Earthquakes, land settlement, and land rising in elevation cause movement in the position of monuments, even the land itself. Except along the ocean, vertical displacement of Earth's surface does not usually alter the location of title interests. Another exception is where title lines are defined by an elevation line or a contour. Subsidence adjoining the oceans and bodies of water may alter the position of the mean high-water or mean high-tide line.

Horizontal and vertical changes to the landscape may be categorized as follows:

Changes Due to Water

Accretion, avulsion, erosion, and reliction are ways in which land boundaries and the location of land titles may be altered. This area is so complex and widespread that Chapter 9—Riparian and Littoral Boundaries is specifically devoted to these concepts.

Changes Due to Wind

Wind may move soil particles, resulting in accretion and erosion. Often, movement by wind is in conjunction with movement by water, and so is not readily distinguishable or recognizable. One case of wind accretion was decided by the Canadian court system.¹¹

Violent windstorms not only wreak general havoc across the landscape but cause movement of soil and destruction of boundary monumentation and references. Hurricanes, tornadoes, microbursts, and related storms are generally isolated events, but frequent enough that they occur on an annual basis.

Changes Due to Earthquakes

Horizontal movements can drastically change land location. After the numerous San Francisco earthquakes of 1906 and the Anchorage earthquake of 1964 many boundary lines were abruptly changed disturbed. This includes all areas that are subject to these disturbances. In one instances a sidewalk was observed with a lateral displacement of about 19 feet. Basically there are three types of movement: (1) sudden horizontal shifts on each side of a fracture; (2) distortions due to stretching or compressing, much as a rubber band can be elongated or shortened; and (3) slides. The last Alaskan earthquake altered the location of the track of the Alaska Railroad, thereby making measurements based on location useless. No litigation was found in which sudden fracture movements or stretching or compressing was an issue. Landslides are often a consideration in legal cases.

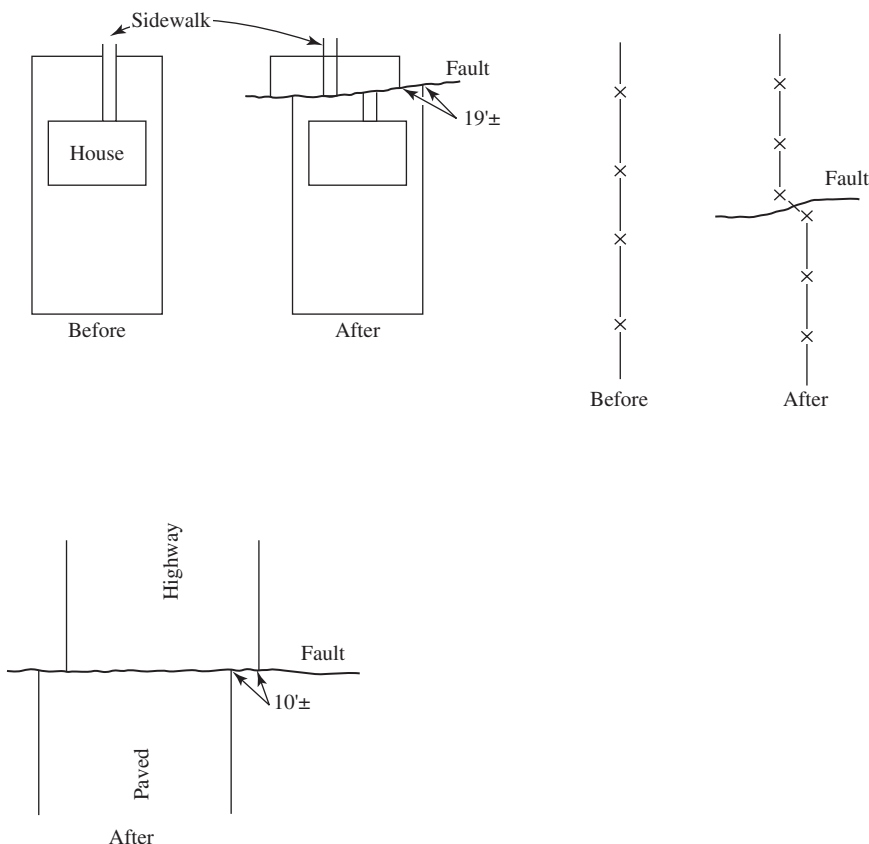


Figure 13.25 Land displacements caused by earthquakes.

The following discussion is not based on court decisions but represents what is believed to be the surveyors' best solution to land movement problems. In the event of a sudden earth movement, the same rule should apply as for a sudden change in a river's course; the same land belongs to the same owner. Figure 13.25 shows sudden land shifts along the San Andreas Rift. It is probable that in these instances the same owner should continue to own the same land even though displaced along a line of fracture.

After a violent earthquake, land may be distorted without observable rupture. Thus, after the Long Beach earthquake in California, the distances between monuments in one direction became 1 foot longer per 100 feet. The land did not show cracks or other signs of separation. Surveyors in the area recognize local control and prorate the distances between the nearest found monuments. If nearby monuments are not locatable, proportional measurement is based upon nearby improvements. Proration between distance points develops inequities. Long, straight streets may end up with permanent well-rounded bends. In a situation in which everything has

moved nearly the same amount, it is inconceivable that owners should move their improvements back to their former absolute position of latitude and longitude.

In the early part of the nineteenth century, this country experienced one of the strongest earthquakes ever, in the vicinity of New Madrid, Missouri. Since there was little settlement in this area, and few recorded lives lost, it is not recorded as a devastating earthquake. However, studies explain how the Mississippi River flowed backward for three days, and Reelfoot Lake, once nonnavigable, was transformed into a navigable body of water. This issue alone, along with the resulting land title claims, resulted in an 87-page court decision to resolve some of the problems.¹² After the earthquake, the site of the town of New Madrid was under the new location of the Mississippi River. Today, through movement of the location of the river, the site of New Madrid is now on the easterly bank, whereas before the earthquake it was on the westerly bank. Dramatic changes such as this, and their consequences, wreak havoc with land titles and property locations.

Changes Caused by Tsunamis

Tsunamis are caused by other events: earthquakes, underwater volcanoes, underwater landslides, and meteor impact in water. The changes in the landscape can be widespread and major. The 2004 tsunami in the Indian Ocean caused widespread damage, altered shorelines, washed away islands and parts of villages, and resulted in extensive loss of life.

Landslides and Earth Flows

Landslides are due to a variety of causes on slopes that are unstable for one reason or another. They may be in the form of the release of a single boulder, some of which travel great distances, or in the form of a volume of soil or rock material moving downslope. When unstable soils become saturated with water, movement can take place slowly or rapidly depending on the steepness of the slope, and can result in mass movement of a few to many cubic yards of material.

If slides are created because of negligence, monetary damage is not precluded. Where a slide results from an act of nature, such as an earthquake, the owners undoubtedly own where their bedrock is located. In the Alaskan earthquake of 1964, the shaking caused land to become fluid, and it ran into the bay. In such instances, land boundaries could not flow with the surface material.

Subsidence

Subsidence generally occurs in response to the relieving of support under the land. Withdrawal of groundwater, minerals such as oil and gas, or general erosion of soluble rock may cause the overlying land surface to decrease in elevation. Dramatic effects may come in the form of sudden sinkholes.

Oil removal in Long Beach, California caused vertical subsidence of almost 27 feet and a horizontal movement from zero to about 8 feet. There are several areas

mostly throughout the East including sinkholes in Florida due to a variety of situations. Since the movement is of long duration and imperceptible to the eye, people adjust to it. Streets, curbs, buildings, and improvements all move. It is logical that surface rights should move with the land. Also, it is logical to use proportional measurements in locating surface rights (even for metes and bounds descriptions calling for absolute dimensions).

Earth elongation or shortening is seldom the same in all directions. Thus, land can be stretched 1 foot per 100 north and south and be slightly compressed east and west. In such areas, the surveyor must test original measurements between many monuments spaced in different directions to determine an index of adjustment.

Volcanoes

When volcanoes “blow their tops,” abrupt changes to the landscape occur. Ash fall, which can spread for miles, may affect elevations, while flows of lava and other material may also fill in lakes and riverbeds or flow into the ocean and cool, creating land where there was none before the blast. In the 1980 eruption of Mt. St. Helens, within about 10 minutes, the resulting landslide filled 22 kilometers of the North Fork Toutle River Valley with rock debris to an average depth of 45 meters. In places, the deposit is 195 meters thick.

In Hawaii, the leading case concerning ownership of solidified lava due to cooling after flowing into the ocean was decided in 1977.¹³

Glaciers

As glaciers advance, they put tremendous pressure on the landscape, causing it to depress. As they retreat, the land is once again relieved of the pressure and a phenomenon known as glacio-isostatic rebound takes place. One case in Alaska was a friendly suit between a private landowner, who owned the upland, and the State of Alaska, which claimed the bed of the water, over a parcel that was under water as long as the glacier was on top of it but became dry land after the retreat of the ice.¹⁴

Fire

Fire may burn areas containing trees that are either corner markers or reference monuments. Fire may also burn buildings, destroying party walls, monumentation, and indoor easements, such as passage through a hallway or on a set of stairs.

Fire will also destroy a land records system, as witnessed in a number of cities (Chicago and several Connecticut towns, for example), some town offices, and during the years from 1861 to 1865 a number of courthouses during the Civil War, were destroyed giving rise to a change in the system or inception of a completely new recording system.

Fire can also burn heavy brush and dense growth, clearing the way for monument search and recovery, such as takes place in the Everglades and similar habitats on a fairly regular basis.

Secondary Events

Much of the destruction that occurs is not due to the primary event but stems from the secondary event that follows. For example, earthquakes result in flooding, fire results in erosion, and volcanoes result in landslides and lava flows. In many areas secondary flooding following hurricanes destroyed many of the original field notes and plats of Colonial records. Coupled with the destruction of the records many of the field notes and original plats were destroyed (by mother nature).

Even though certain events may seem to be quite rare in certain areas, no place is completely safe from most of the foregoing phenomena. Depending on the category, some areas are more vulnerable than others.

13.15 RECOGNITION OF PAST EVENTS

The older the event, the more difficult it is to recognize after the forces of nature have reshaped the landscape, or if human intervention has taken place in the form of dredging, filling, or grading. Some characteristics are indicative of past events, such as leaning fence posts, power poles, and cemetery markers; cracks in the ground, especially in pavement or cracks in building foundations; cemetery markers rotated on their bases; railroad tracks out of alignment; and marked elevation differences. When things differ from earlier survey measurements, do not quickly assume that the previous work was in error. The earth may have shifted between the two time periods—the older the earlier survey, the more likely that some event may have taken place.

The surveyor should realize that there are several natural ways that boundaries can be altered or land areas created or destroyed. Although there are few decisions that can provide guidance to the surveyor in identifying boundaries that have been altered, any surveyor who accepts the task of locating or positioning a boundary that has been altered or modified by natural phenomena should become versed in what has been written.

Principle 12. *The scrivener should write each description as an individual creation, and each description should assume a continuity of words and definitions.*

Like individuals, there should be no two descriptions exactly the same. If we accept the fact that a description should be unique and should describe a single unique parcel of land, unlike any other parcel in existence, then we understand the purpose of a description.

Principle 13. *When a retracing boundary surveyor encounters a problem, he or she should try to give consideration to all elements of the description, but should be able to explain why specific elements were not adhered to.*

We will assume that the “professional” will endeavor to conduct his or her boundary fieldwork to the highest degree of sophistication. The more elements referred to

in the initial boundary description, the more evidence the retracing surveyor will have to identify the original boundary lines. The courts are liberal in interpreting descriptions, and when a problem is encountered, they will look for the “key” to its solution. They will pass this on to the retracing surveyor, even though he or she has no legal authority. They will permit the surveyor to reverse courses, eliminate courses, and just about everything in between, in order to make the description work.¹⁵

No two boundary descriptions should read the same.
Each description should be unique unto itself.

The courts have repeatedly held that the purpose of a land description is to provide the “key” to permit an individual to locate the specific and unique parcel of land on the ground. As such, a description should not take a “cookbook” approach to accomplishing the task. The scrivener should understand the components that are necessary to constitute an adequate and legal description, and then he or she should use those necessary elements to prepare that specific description. The scrivener should avoid using preprinted forms or computer-generated aids; however, the individual who writes the new description should make reference to any previous descriptions and should use newly gathered information to prepare the new description.

NOTES

1. *Earl v. Dutour*, 181 Cal. 58 (1919).
2. *The Au Gress Boom Co. v. Whitney*, 26 Mich. 42 (1872).
3. *People v. Hall*, 8 N.Y.S. 276 (1889).
4. *Oruett v. Robinson*, 192 S.W. 537, 108 Tex. 283 (1917).
5. *Woods v. Shelby Oil & Gas Co.*, 2 S.W.2d 895, 12 S.W.2s 994 (1929).
6. *Daniel v. Williams*, 58 So. 419, 177 Ala. 140 (1912).
7. *Merkel Drainane v. Hathaway*, 260 Ill. 186 (1913).
8. *Early v. Long*, 42 S 348, 89 Miss. 285 (1906).
9. *Kellogg v. Vickory*, 1 Wend. 106 (1828).
10. *Lassus v. Gourgott*, 169 La. 577, 125 So. 628 (1929).
11. *Cates v. West Tenn. Land Co.*, 127 Tenn. 575 (1913).
12. *State v. Zimring*, 58 Haw. 106; 566 P.2d 725 (1977).
13. *Hosinger et al. v. State of Alaska*, 642 P.2d 1352 (1982).
14. *Bremner v. Bleakley*, 54 O.L.R. (Ont. C.A. 1923)
15. *Martin v. Pallin*, 483 S.E. 2d 614 (Ga.). For academic discussion of “Key” see *Oconee Land Co. v. Buchanan*, 686 S.E. 2d 452 (Ga. 2009).